

No reason is offered for vacating the judgment other than Defendant's desire to pay the judgment in installments.

Analysis

Section 582.5 of the CCP says nothing about the court's ability to set aside default judgments. Even assuming it did, *arguendo*, Defendant's prior appearance is a prerequisite.

This statute clearly does not apply.

There is no basis for Defendant's request.

Disposition

Defendant's Motion is denied.

Plaintiff to file Order and serve copy of filed Order on Defendant.

**13. 9:00 AM CASE NUMBER: MSL21-03519
CASE NAME: JPMORGAN CHASE BANK, N.A VS. MADELINE ALVARADOSWEENEY
MOTION TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT PURSUANT TO
STIPULATION FILED BY PLTF ON 04/17/2026
FILED BY: JPMORGAN CHASE BANK, N.A**

TENTATIVE RULING:

Plaintiff filed a Motion to set aside notice of settlement and enter judgment pursuant to a written agreement. The Motion was served by mail on counsel for Defendant.

The Motion is unopposed.

Background

Plaintiff filed, on 9/21/22, notice of conditional settlement, reflecting that the case that the parties would file a request for dismissal no later than 10/20/25.

That event never occurred.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$15,448.60, less any credits for payments received.

Defendant defaulted on that agreement.

Defendant made total payments in the amount of \$0;

Defendant signed the agreement on 9/22/22.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$15,448.60.

Plaintiff to file order on Motion, as well as submit Judgment.

**14. 9:00 AM CASE NUMBER: N26-0307
CASE NAME: ERIC TOBIASON VS. THERESE WILLIAMS**

FILED BY:

TENTATIVE RULING:

Parties agreed to continue this to 9/29/26, 9am.

This will be dropped.

Courtroom Clerk's Session

**15. 1:30 PM CASE NUMBER: RS26-0289
CASE NAME: MARTHA FLORES VS. BELTER JIMENES**

UNLAWFUL DETAINER

FILED BY:

TENTATIVE RULING: